

25NWLC78491 25NWLC78491

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-11

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25NWLC78491: WELLS FARGO BANK, N.A. vs JOLENE M RAMIREZ, AN INDIVIDUAL

Tentative Ruling:

The Court has read and reviewed all moving documents filed by Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") in support of its motion for summary judgment, including the separate statement and supporting evidence.

Plaintiff's motion for summary judgment was filed on June 5, 2026 and set for hearing on September 11, 2026. No opposition has been filed by Defendant Jolene Ramirez ("Defendant").

The Court finds that Plaintiff has met its initial burden of showing there are no triable issues of material fact as to Plaintiff's causes of action for (1) breach of written contract and (2) breach of contract (implied in fact), by presenting evidence establishing each element of those causes of action and thus entitling Plaintiff to summary judgment. Plaintiff has shown, through admissible evidence, that Defendant was issued the subject credit card by Plaintiff; Defendant was the only person authorized to make charges on the account; Defendant received monthly statements for the account; and there is no record of any unresolved disputes on the account. (Plaintiff's Separate Statement of Undisputed Material Facts ("UMF") Nos. 1–10, 15–24.) The evidence further shows Defendant's last payment on the account was January 3, 2025, and Defendant owes Plaintiff an unpaid balance of \$10,256.57 on the credit account. (Id., UMF Nos. 11–14, 25–28.)

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to any of the elements of the causes of action for breach of contract or that there is any defense thereto required by Code of Civil Procedure section 437c(p)(1).

The Court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS Plaintiff's Motion for Summary Judgment as to its causes of action for breach of contract.

Judgment is hereby entered in favor of Plaintiff Wells Fargo Bank, N.A. and against Defendant Jolene Ramirez in the principal sum of \$10,256.57, plus court costs in the amount of \$725.00, for a total judgment in the sum of \$10,981.57.

The Proposed Order and Proposed Judgment will be signed by the Court.

Plaintiff to give notice.